

GINSBURG, J., dissenting

claims might be viable, 582 U. S., at 146–149,² the Court held that the other claims could not proceed under *Bivens*. A lawsuit challenging “a high-level executive policy” framed in response to “a major terrorist attack,” the Court observed, bore “little resemblance to” previous *Bivens* settings. 582 U. S., at 140. As considerations counseling hesitation to extend *Bivens* to the setting in *Abbasi*, the Court stressed the impropriety of using *Bivens* to challenge governmental policies, the risk of judicial disruption of national-security decision-making, and the availability of alternative remedies. 582 U. S., at 140–146.

Concerning future invocations of *Bivens*, *Abbasi* provided several guides. On whether a case presents a new *Bivens* context, the Court stated: “If the case is different in a meaningful way from previous *Bivens* cases decided by this Court, then the context is new.” 582 U. S., at 139. And on whether to extend *Bivens* to a new context, *Abbasi* identified as the critical inquiry: Is “the Judiciary . . . well suited, absent congressional action or instruction, to consider and weigh the costs and benefits of allowing a damages action to proceed”? 582 U. S., at 136.

While reining in this Court’s *Bivens* jurisprudence, the Court cautioned in *Abbasi* that its “opinion is not intended to cast doubt on the continued force, or even the necessity, of *Bivens* in the search-and-seizure context in which it arose.” 582 U. S., at 134. “The settled law of *Bivens* in this common and recurrent sphere of law enforcement, and the undoubted reliance upon it as a fixed principle in the law, are powerful reasons to retain it in that sphere.” *Ibid.* The Court also reiterated that suits against “the *individual* official for his or her own acts” deter behavior incompatible with

²The detainees had alleged, *inter alia*, that one of the wardens violated the Fifth Amendment by allowing prison guards to abuse them. *Ziglar v. Abbasi*, 582 U. S. 120, 146 (2017). The Court remanded this claim for the Court of Appeals to conduct a special-factors analysis in the first instance. *Id.*, at 149.